

25 JUL 1966

Bill No. 39 of 1966

THE CONSTITUTION (TWENTIETH AMENDMENT)
BILL, 1966

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BILL

further to amend the Constitution of India.

Be it enacted by Parliament in the Seventeenth Year of the
Republic of India as follows:—

1. This Act may be called the Constitution (Twentieth Amend- Short title.
ment) Act, 1966.

2. In article 3 of the Constitution, the following *Explanations* Amendment
shall be inserted at the end, namely:— of article 3.

'*Explanation I.*—In this article, in clauses (a) to (e), "State"
includes a Union territory, but in the proviso, "State" does not
include a Union territory.

Explanation II.—The power conferred on Parliament by
clause (a) includes the power to form a new State or Union
territory by uniting a part of any State or Union territory to
any other State or Union territory.'

STATEMENT OF OBJECTS AND REASONS

Article 3 of the Constitution provides for the formation of new States and alteration of areas, boundaries, or names of existing States. Before the Constitution (Seventh Amendment) Act, 1956, was enacted, the expression "States" occurring in that article meant Part A States, Part B States and also Part C States. By the Seventh Amendment of the Constitution in 1956, the concept of "Union territories" was introduced in our Constitution but article 3 was not amended to include *in terms* "Union territories". It is considered proper to amend this article to make it clear that "State" in clauses (a) to (e) of that article (but not in the proviso) includes "Union territories". It is also considered proper to make it clear that power under clause (a) of article 3 includes power to form a new State or Union territory by uniting a part of a State or Union territory to another State or Union territory.

The Bill seeks to achieve the above objects.

New Delhi:
The 16th May, 1966.

G. L. NANDA

ANNEXURE

EXTRACT FROM THE CONSTITUTION OF INDIA

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1. Parliament may by law—

(a) form a new State by separation of territory from any State or by uniting two or more States or parts of States or by uniting any territory to a part of any State;

(b) increase the area of any State;

(c) diminish the area of any State;

(d) alter the boundaries of any State;

(e) alter the name of any State:

Formation
of new Sta-
tes and alte-
ration of
areas, boun-
daries or
names of
existing
States.

Provided that no Bill for the purpose shall be introduced in either House of Parliament except on the recommendation of the President and unless, where the proposal contained in the Bill affects the area, boundaries or name of any of the States, the Bill has been referred by the President to the Legislature of that State for expressing its views thereon within such period as may be specified in the reference or within such further period as the President may allow and the period so specified or allowed has expired.

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LOK SABHA

A BILL

further to amend the Constitution of India.

*(Shri Gulzarilal Nanda,
Minister of Home Affairs.)*